

26STCV10813 26STCV10813

County: los-angeles

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Case Number: 26STCV10813 Hearing Date: September 16, 2026 Dept: 732

Richard Mikal Sweeting III v. Fast home Services, LLC,
et al..

Wednesday, September 16, 2026

CASE NUMBER: 26STCV10813

OPPOSED

Defendant Fast

Home Services, LLC's Motion to Compel Arbitration

Facts: This is an action for unpaid wages and retaliatory discharge. The Complaint alleges as follows. Plaintiff Richard Hikal Sweeting III ("Plaintiff") was discharged from his employment with Defendant Fast Home Services, LLC ("Defendant") shortly after raising complaints about the non-payment of legally owed commissions and seeking to review the contract pursuant to which they were promised. (Complaint ¶¶ 12–14.)

Procedural History:

Plaintiff filed the Complaint on April

3, 2026, alleging three causes of action:

1.

Labor Code §

98.6

2.

Labor Code §

1102.5

3.

Wrongful

Termination

Defendant filed the present motion to compel arbitration on May 19, 2026.

Plaintiff filed an opposition on April 3, 2026.

Defendant filed a reply on September 2, 2026.

Analysis:

I.

MOTION TO

COMPEL ARBITRATION

On petition of a party to an arbitration agreement to arbitrate a controversy, a court must order the petitioner and respondent to arbitrate the controversy if it determines the arbitration agreement exists, unless (1) the petitioner has waived its right to arbitrate; (2) grounds exist for the revocation of the agreement; or (3) “[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.” (Code Civ. Proc., § 1281.2.)

“[T]he party moving to compel arbitration bears the burden of establishing the existence of a preponderance of the evidence any fact necessary to its defense. The role of the trial court is to sit as a trier of fact, weighing any affidavits, declarations, and other documentary evidence, together with oral testimony received at the court's discretion, to reach a determination on the issue of

arbitrability.” (Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Defendant Fast Home

Services, LLC (“Defendant”) moves to compel arbitration of Plaintiff Richard Mikal Sweetings III’s (“Plaintiff”) claims based on an arbitration agreement executed by Plaintiff on May 24, 2026. That agreement requires arbitration of all claims “relating to the Employee’s employment relationship with the Company and/or the termination of the Employee’s employment relationship with the Company, to the extent permitted by law.” (McGavran Decl. Exh. 2.)

Plaintiff in

opposition argues that the arbitration agreement is unconscionable for, among other things, lack of mutuality, once it is considered in connection with a concurrently executed confidentiality, non-solicitation, and non-disparagement agreement omitted from Defendant’s motion. (Opposition at pp. 8–20.)

Consideration of the

concurrently executed confidentiality agreement is proper when addressing the enforceability of the arbitration agreement here sought to be enforced. “Several contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction, are to be taken together.” (Civ. Code § 1642.) The agreements here were delivered to Plaintiff in the same Docusign envelope and executed concurrently. (Sweeting Decl. ¶¶ 9–13; Pletcher Decl. ¶ 4.) Although Defendant argues that the agreements ought not to be considered together in the absence of express incorporation (Reply at pp. 7–8), binding authority suggests consideration of the concurrently executed employment documents together is proper in order to assess the enforceability of the arbitration agreement, regardless of whether the agreements expressly reference or incorporate each other. (See *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 108.)

“Unconscionability

requires a showing of both procedural unconscionability and substantive unconscionability.” (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 795.) The oppression that creates procedural unconscionability arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1347–1348.) “Substantive unconscionability is not susceptible

of precise definition. It appears the various descriptions—unduly oppressive, overly harsh, so one-sided as to shock the conscience, and unreasonably favorable to the more powerful party—all reflect the same standard. Substantive unconscionability is not concerned with a simple old-fashioned bad bargain.” (Id. at p. 1349, citations omitted.)

Here, Plaintiff presents a basis for finding a high degree of procedural unconscionability, because arbitration contracts presented to employees on a take-it-or-leave-it basis are at least minimally procedurally unconscionable. (See *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000)

24 Cal.4th 83, 113.) Here, not only were the agreements presented in such a fashion, but they were sent to Plaintiff in the middle of his workday, with express instructions that he could not take further jobs until they were signed, forcing Plaintiff to choose either immediate signature, essentially without review, or to take the time to review the documents, and lose work in the meantime. (Sweeting Decl. ¶¶ 8–9.)

Thus the element of procedural unconscionability is met here.

Plaintiff

also demonstrates a high degree of substantive unconscionability arising from a lack of mutuality. Although the arbitration agreement is outwardly mutual in its requirement of arbitration, the concurrently executed confidentiality agreement indicates that Defendant retained for itself the prerogative of bringing an action in court to enforce its confidentiality, non-solicitation, and non-disparagement agreement.

While the arbitration agreement expressly applies to claims for “breach of contract” (McGavran Decl. Exh. 2), the confidentiality agreement does not appear to contemplate arbitration of claims to enforce its provisions. It makes no mention of arbitration, and includes special provision for attorney fees incurred in “litigation, including upon appeal and in bankruptcy proceedings.”

(Pletcher Decl. Exh. 4, ¶ 6.) It includes severability clauses specifically referring to determinations by a “court” or “court of competent jurisdiction.”

(Id. at ¶¶ 3(e), 5.) Similar textual indicators contained in confidentiality agreements, executed concurrently with an arbitration agreement but themselves lacking any provision for arbitration, have been held to suggest that the confidentiality claims were intended to be excluded from arbitration:

“The confidentiality agreements’ silence about the forum for dispute resolution therefore indicates that the parties did not intend disputes to be subject to mandatory arbitration.” (*Fuentes v. Empire Nissan, Inc.* (2026) 19

Cal.5th 93, 109.) The agreements together thus create a broad exception to

arbitration in favor of the employer's claims under the confidentiality agreement, evidencing a lack of mutuality.

The

confidentiality agreement also permits Defendant to obtain equitable remedies upon evidentiary presumptions and procedural advantages not extended to its employees. The confidentiality agreement contains a provision creating a presumption in Defendant's favor that violation of the agreement creates irreparable harm, thus absolving it of the necessity of proving damages, and further states that no bond need be posted in the pursuit of injunctive relief. (Pletcher Decl. Exh. 4, ¶ 6.) .) Such a provision is one-sided in Defendant's favor and unconscionable. (See *Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 492 [“[A]dditional provisions that waive the employer's need to obtain a bond before seeking an injunction, waive the employer's need to show irreparable harm, and require an employee to consent to an immediate injunction are unconscionable. They exceed the legitimate ‘margin of safety’ for the employer and are not mutual.”].)

The arbitration agreement itself

also contains substantively unconscionable provisions. It permits the prevailing party in any action “to compel arbitration” to their “reasonable attorney fees and costs.” (McGavran Decl. Exh. 2, ¶ 12.) The clause thus threatens employees who oppose arbitration of their employment-related claims with penalties that contradict the statutory apportionment of fees for certain statutory claims, including that of Labor Code § 1102.5, as Plaintiff brings here. (Lab. Code § 1102.5, subd. (j).) Similar clauses which violate “asymmetric rule[s] regarding awards of costs and fees” mandated by statute have been held unconscionable, as they impose fees upon plaintiffs bringing unwaivable statutory claims greater than they would otherwise have to bear in the absence of an agreement to arbitrate. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 507.)

The arbitration agreement also

contains an unconscionable waiver of Plaintiff's right to bring non-individual PAGA claims. (McGavran Decl. Exh. 2, ¶ 5.) Representative PAGA claims are not arbitrable, and the arbitration of individual PAGA claims does not deprive the employee of standing to pursue representative PAGA claims in court. (See *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123.) The waiver of representative PAGA claims is thus another substantively unconscionable

provision.

Notwithstanding the severability

clauses in the confidentiality and arbitration agreements, the above provisions permeate the arbitration agreement with unconscionability, and demonstrate an intent by Defendant to funnel employee claims into arbitration, while arrogating to itself the privilege of bringing actions in court, subject to favorable procedures and evidentiary presumptions not available to employees like Plaintiff. As such, the offending provisions are not severable, and the arbitration agreement is not enforceable (See *Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 90.)

The

motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

RICHARD MIKAL SWEETING III,

Plaintiff,

v.

FAST

HOME SERVICES, LLC, et al.,

Defendants.

Case No.:

26STCV10813

Hearing Date: September 16, 2026

[TENTATIVE] RULING RE:

Defendant Fast Home Services, LLC's Motion to Compel Arbitration

Defendant

Fast Home Services, LLC's Motion to Compel Arbitration is DENIED.

Defendants to provide notice.

Dated: September 16, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court